

Vaibhav Singh v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 22 August 2023 · 2023:AHC-LKO:55648-DB · Writ - C No. 7147 of 2023 · **Writ disposed; Executive Engineer to decide clause 6.14 instalment plea in four weeks.**

HEADNOTE

A writ seeking easy instalments of electricity-bill arrears was disposed of on the licensee's statement that the consumer may apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. If the application is moved, that officer must consider and decide it within four weeks of placement of the certified copy, by a speaking and reasoned order in accordance with law.

FACTUAL SUMMARY

Vaibhav Singh approached the Lucknow Bench of the Allahabad High Court in a writ against Madhyanchal Vidyut Vitran Nigam Ltd. and two others. His grievance was limited to the manner of payment: he wanted to deposit the arrears of his electricity bill in easy instalments. Counsel for the Power Corporation told the Court that Singh could move the Executive Engineer, Electricity Distribution Division, Akbarpur, Ambedkar Nagar, under clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments of electricity-bill arrears

HOLDING

On the licensee's statement that a consumer seeking easy instalments of electricity-bill arrears may apply to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005, the writ was disposed of with a direction that, if such an application is moved, the Executive Engineer shall consider and decide it within four weeks of placement of a certified copy of the order, by a speaking and reasoned order in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The request to deposit electricity-bill arrears in easy instalments was left to an application before the Executive Engineer under clause 6.14, to be considered and decided by a speaking order within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO DEPOSIT THE ELECTRICITY-BILL ARREARS IN INSTALMENTS, AND ON WHAT TERMS

Left to the Executive Engineer under clause 6.14, to be decided by a speaking order in accordance with law ¶ 1